Guilderland CSD Policy 8636 (AI): Data and Student Privacy Passages

Excerpted verbatim from *Policy 8636 - Artificial Intelligence, sample policy for update (Guilderland Central School District, New York; NYSSBA Sample Policy, July 2026 update)*. Page numbers refer to the PDF pages of the source file. Page numbers are PDF page numbers because the document has no printed page numbers. Ellipses (…) mark omitted text. The document is a sample policy that includes drafting notes (labelled NOTE or NEW NOTE) from the policy-service author.

Overall Expectations: Age and Parental Permission Note (excerpt)

Source: page 3

NOTE: Keep in mind that some GenAI tools, for example ChatGPT, require a user to sign up for an account using an email address and phone number. ChatGPT is currently restricted to users aged 13 and up, with parent permission required for users aged 13-17.

The district could modify the paragraph below to prohibit all student use of GenAI regardless of whether use is compliant with Education Law 2-d.

Staff must also be mindful that some GenAI tools are free and others are not, that some GenAI tools are not permitted to be used by those under certain ages, or require parent permission, and that some students and/or parents may not wish to use GenAI tools or input their work into them.

III. AI Tool Approval and Review

Source: page 3

NEW NOTE: This section is included to reflect best practices, to aid in compliance with data privacy laws, to ensure consistency, and minimize redundancy of software.

All requests to use software/tools containing AI must be submitted to the Director of Technology [or insert appropriate title], including the intended reasons for and uses of the software/tool. The Director of Technology is responsible for reviewing and approving any software containing AI, in consultation with the Data Protection Officer, to ensure they are compliant with the law and district policies.

The Director of Technology will document the decisions that have been made to evaluate and approve AI software/tools. The Director of Technology will periodically review the AI tools in use in the district for continued compliance with the law and district policies.

IV. Acceptable and Prohibited Uses of Artificial Intelligence (excerpt)

Source: pages 4–5

NOTE: The district may wish to restrict the use of GenAI by employees for certain purposes. For example, whether teachers should be allowed to use GenAI to grade student assignments, or within what parameters, given that any student work input into a GenAI tool could be used by the platform, and that GenAI can sometimes produce incorrect answers.

Any district approved, provided or designated AI tools are the only ones that may be used for district, employment, or school-related purposes.

Users may not use the district's approved AI tools, or use AI tools with district technology or networks, to access, create, distribute, or display content that is harmful, deceptive, threatening, obscene, disruptive, or sexually explicit, or that is harassment of others, in violation of district policies, or interact with the AI in a manner that supports any of the above. This includes "deepfakes" where an image, video, or audio is generated of an individual, particularly to make it appear as though that person did or said something they did not.

The district also notes that non-consensual distribution of intimate images is a Class A Misdemeanor under Penal Law §245.15.

V. Data Privacy and Restrictions on Entering Information into AI Tools

Source: pages 5–6

NEW NOTE: Any use of student Personally Identifiable Information must be in conformance with Education Law 2-d for third parties who have access to this information. Other categories of information are protected by separate state laws, for example "private information" under State Technology Law 208, or employee "personal identifying information" under Labor Law 203-d.

Any use of AI in schools, on school networks/computers, or for school purposes must be compliant with state laws and regulations whenever sensitive information is entered into AI tools, including under third-party agreements. Staff must consult with the district's Data Protection Officer to determine compliance with Education Law §2-d.

NOTE: In the paragraph below, the district may not wish to draw a distinction between public-facing AI tools and "closed" systems, and prohibit the inputting of sensitive information into any AI tools. In that case, simply delete the phrase "which can be used by the public" below.

Because any information used as input in AI tools may be used by that system and potentially made available to other users of the system, district users must not input any personally identifying, sensitive, copyrighted, proprietary, or confidential district information into an AI tool which can be used by the public, consistent with applicable state and federal laws and district policies, including but not limited to the following:

- Student information: anything that would be protected by FERPA (see policy 5500 and regulation 5500-R) or Education Law 2-d (see policy 8635 and regulation 8365-R).
- Staff information: anything that would be protected by Education Law 2-d or Labor Law 203-d (see policy 8635 and regulation 8365-R), or other confidential personnel information.
- School district information: anything that would be withheld from a Freedom of Information Law (FOIL) request (see policy 1120 and regulation 1120-R), or private information under State Technology Law §208 which would require notification in the event of a breach.

Additionally, users of GenAI must exercise caution before inputting any work created by district students or employees.

IX. Training (excerpt)

Source: page 9

This training will include how to use such tools, as well as expectations regarding acceptable and prohibited uses, including data privacy.

Cross-references and References (excerpt)

Source: page 9

- 1120, School District Records
- 5500, Student Records
- 8630, Computer Resources and Data Management
- 8635, Information and Data Privacy, Security, Breach and Notification
- Family Educational Rights and Privacy Act, as amended, 20 USC 1232g; 34 CFR Part 99
- Education Law §§2-d; 2510(4); 2585(5); 2588(9); 3013(4)
- Labor Law §203-d
- 8 NYCRR Part 121